

04.12.2023:

ORDERS ON IA NO: 1

1. The applicant/DHR has filed I.A.No.1 under Section 151 of CPC seeking an order to break open the lock and hand over the vacant possession of the suit property with help of jurisdictional Police station for the reasons stated in the accompanying affidavit.
2. In the accompanying affidavit it is contended that OS no: 1306/2004, filed by the DHR for declaration and possession was decreed on 16.1.2015. RFA no: 381/2015, preferred by the Judgment debtors challenging the judgment and decree of civil suit has been dismissed on 18.5.2023. against, said order, the judgment debtors have preferred SLP no: 13461-2023 before Hon'ble Supreme Court of India, which came to be dismissed. The Judgment debtors have refused to handover the suit property to applicant, Dhr is a senior citizen who is aged about more than 75 years, and Jdrs have locked the door of the house. With these averments he prays to allow the petition.

3. The opponents/Jdrs have filed objections, contending that the application is not maintainable. Dhr is seeking possession of the property, which is not terms of the decree passed by the court. The opponents are the purchasers of the property.

4. Heard the arguments of both the parties. Perused the material placed on record.

5. The suit was decreed on 16.01.2015, the decree is put in *Execution Petition* No.1130/2023, i.e., the present petition filed on 22.05.2023 to take possession of the property. In OS no: 1306/2004, the court decree the suit and directed the JDR to hand over the vacant possession of the suit property withing 3 months from the date of decree. Against said decree, the JDR has preferred RFA no: 381/2015 has been dismissed by the Hon'ble High Court of Karnataka on 18.5.2023. SLP no: 13461-2023, preferred by JDR has also dismissed by Hon'ble Supreme Court of India on 14.07.2023.

6. It is apparent that since 2015 till today, the JDR has not handed over the vacant possession of the suit premises to the applicants. The fruits of the decree is not realized by the decree

holder since 2015. The Bailiff of the court has submitted a report seeking police help to execute the Delivery Warrant alleging that JDRS have locked the suit property and obstructed the Bailiff while executing the delivery warrant. The applicant has made out sufficient ground to consider his plea. Hence following:-

ORDER

I.A.No.1 filed by Decree holder seeking police help to break open the lock to execute the delivery warrant is hereby allowed.

Issue delivery warrant with Police help.

Issue Intimation to SHO, Bagalagunte Police station.

Call on: 20.12.2023.

(Typed by the Presiding Officer, corrected, signed and then pronounced in the open court by me on 4th day of December, 2023)

(SHAINY K.M)
XIV Addl. City Civil & Sessions Judge,
Bengaluru.